The Voting Rights Act of 1965

U.S. Congress · signed by President Lyndon B. Johnson, August 6, 1965

Source: Voting Rights Act of 1965 (Aug. 6, 1965), text via the U.S. National Archives, Milestone Documents. Public domain.

Passed weeks after the violent suppression of the Selma-to-Montgomery marches, the Voting Rights Act enforced the Fifteenth Amendment by banning literacy tests and authorizing federal oversight of voter registration in areas with a history of discrimination. Black voter registration in the South rose dramatically, making the act one of the most consequential achievements of the civil rights movement.

Connect: How did the events at Selma create the political pressure that made this law possible in 1965?

Key Passages

Section 2 — the core protection

> No voting qualification or prerequisite to voting, or standard, practice, or procedure shall be imposed or applied by any State or political subdivision to deny or abridge the right of any citizen of the United States to vote on account of race or color.

Suspending the tests

> To assure that the right of citizens of the United States to vote is not denied or abridged on account of race or color, no citizen shall be denied the right to vote in any Federal, State, or local election because of his failure to comply with any test or device in any State with respect to which the determinations have been made under subsection (b)

Federal examiners

> Any person whom the examiner finds, in accordance with instructions received under section 9(b), to have the qualifications prescribed by State law not inconsistent with the Constitution and laws of the United States shall promptly be placed on a list of eligible voters.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The civil rights movement; violent attacks on voting-rights marchers at Selma ('Bloody Sunday,' 1965) shocked the nation after years of disenfranchisement.
Intended Audience *Who was the source written for?*	Southern states and election officials, federal officials who would enforce it, and Black voters who would gain access to the ballot.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Congress and President Lyndon Johnson, responding to movement pressure; it reflects the federal government's newly active role in protecting civil rights.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ practice (A·C·E): Explain ONE effect of the Voting Rights Act on American democracy.
2. Why was active federal enforcement — not simply a ban — necessary to protect voting rights in 1965?
3. How did the Voting Rights Act build on the promise of the Fifteenth Amendment (1870)?

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89th Congress · August 6, 1965

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> Enforcing the Fifteenth Amendment, the act banned the literacy tests and devices used to disenfranchise Black voters and required "preclearance" of voting changes in covered states — the most effective civil rights law in U.S. history.

Purpose of the act

AN ACT To enforce the fifteenth amendment to the Constitution of the United States, and for other purposes. Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That this Act shall be known as the "Voting Rights Act of 1965."

Section 2 — the core protection

SEC. 2. No voting qualification or prerequisite to voting, or standard, practice, or procedure shall be imposed or applied by any State or political subdivision to deny or abridge the right of any citizen of the United States to vote on account of race or color.

[. . .]

Section 4 — suspending the tests and the coverage formula

SEC. 4.

(a) To assure that the right of citizens of the United States to vote is not denied or abridged on account of race or color, no citizen shall be denied the right to vote in any Federal, State, or local election because of his failure to comply with any test or device in any State with respect to which the determinations have been made under subsection

(b) or in any political subdivision with respect to which such determinations have been made as a separate unit, unless the United States District Court for the District of Columbia in an action for a declaratory judgment brought by such State or subdivision against the United States has determined that no such test or device has been used during the five years preceding the filing of the action for the purpose or with the effect of denying or abridging the right to vote on account of race or color

[. . .]

(b) The provisions of subsection

(a) shall apply in any State or in any political subdivision of a state which (1) the Attorney General determines maintained on November 1, 1964, any test or device, and with respect to which (2) the Director of the Census determines that less than 50 percentum of the persons of voting age residing therein were registered on November 1, 1964, or that less than 50 percentum of such persons voted in the presidential election of November 1964.

[. . .]

(c) The phrase "test or device" shall mean any requirement that a person as a prerequisite for voting or registration for voting (1) demonstrate the ability to read, write, understand, or interpret any matter, (2) demonstrate any educational achievement or his knowledge of any particular subject, (3) possess good moral character, or (4) prove his qualifications by the voucher of registered voters or members of any other class.

[. . .]

Section 5 — federal preclearance of changes

SEC. 5. Whenever a State or political subdivision with respect to which the prohibitions set forth in section 4(a) are in effect shall enact or seek to administer any voting qualification or prerequisite to voting, or standard, practice, or procedure with respect to voting different from that in force or effect on November 1, 1964, such State or subdivision may institute an action in the United States District Court for the District of Columbia for a declaratory judgment that such qualification, prerequisite, standard, practice, or procedure does not have the purpose and will not have the effect of denying or abridging the right to vote on account of race or color, and unless and until the court enters such judgment no person shall be denied the right to vote for failure to comply with such qualification, prerequisite, standard, practice, or procedure

[. . .]

Section 7 — federal examiners

SEC. 7.

(a) The examiners for each political subdivision shall, at such places as the Civil Service Commission shall by regulation designate, examine applicants concerning their qualifications for voting. An application to an examiner shall be in such form as the Commission may require and shall contain allegations that the applicant is not otherwise registered to vote.

(b) Any person whom the examiner finds, in accordance with instructions received under section 9(b), to have the qualifications prescribed by State law not inconsistent with the Constitution and laws of the United States shall promptly be placed on a list of eligible voters. . . . The appropriate State or local election official shall place such names on the official voting list.

[. . .]

Section 10 — the poll tax

SEC. 10.

(a) The Congress finds that the requirement of the payment of a poll tax as a precondition to voting

(i) precludes persons of limited means from voting or imposes unreasonable financial hardship upon such persons as a precondition to their exercise of the franchise, (ii) does not bear a reasonable relationship to any legitimate State interest in the conduct of elections, and (iii) in some areas has the purpose or effect of denying persons the right to vote because of race or color. Upon the basis of these findings, Congress declares that the constitutional right of citizens to vote is denied or abridged in some areas by the requirement of the payment of a poll tax as a precondition to voting.

[. . .]

Section 12 — penalties

SEC. 12.

(a) Whoever shall deprive or attempt to deprive any person of any right secured by section 2, 3, 4, 5, 7, or 10 or shall violate section 11(a) or (b), shall be fined not more than $5,000, or imprisoned not more than five years, or both.

Words to know

abridge — cut back or limit

political subdivision — a county, city, or other local government within a state

declaratory judgment — a court ruling that states what the law is before anyone is punished

test or device — any literacy test, education requirement, or character check used to block voters

voucher — a statement from another registered voter guaranteeing that a person qualifies

poll tax — a fee that had to be paid before a person could vote

franchise — the right to vote